

1 SENATE BILL NO. 528

2 INTRODUCED BY J. TREBAS

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4 A BILL FOR AN ACT ENTITLED: "AN ACT REVISING LAWS RELATED TO CREDIT CARD TRANSACTION
5 FEES; ALLOWING LANDLORDS, PROPERTY MANAGERS, MERCHANTS, VENDORS, CREDITORS, OR
6 OTHER PARTIES TO CHARGE CREDIT CARD TRANSACTION FEES; AND REQUIRING DISCLOSURE OF
7 THE FEE PRIOR TO COMPLETION OF THE TRANSACTION."
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9 BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:
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11 NEW SECTION. **Section 1. Limitation on credit card transaction fees.** (1) A landlord, property
12 manager, merchant, vendor, creditor, or other party may charge a consumer a credit card transaction fee that is
13 not more than 3% of the total amount of the credit card transaction or as otherwise provided by contract.

14 (2) Prior to charging a credit card transaction fee, the party charging the fee shall clearly disclose
15 the fee prior to the completion of the credit card transaction.
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17 NEW SECTION. **Section 2. Codification instruction.** [Section 1] is intended to be codified as an
18 integral part of Title 31, chapter 2, part 1, and the provisions of Title 31, chapter 2, part 1, apply to [section 1].
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